

THIRD SCHEDULE.

Section 8.

ARMY ACT.

Sections 83 (6), 145 (2), 180 (2) (f) (g), 182, 190 (4), (5), (6), (7).

AIR FORCE ACT.

Sections 145 (2), 182, 190 (4), (5), (6), (7).

CHAPTER 8.

An Act to extend to the administrative County of London the provisions of the Rating and Valuation Act, 1925, with respect to the valuation of hereditaments containing machinery and plant, to make temporary provision with respect to the deductions to be made in ascertaining rateable value, to amend sections eleven and thirty-seven and the Fourth and Fifth Schedules of the said Act, and to provide for obtaining decisions on points of law with a view to securing uniformity in valuation.

[10th May 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section twenty-four of the Rating and Valuation Act, 1925 (in this Act referred to as "the principal Act"), which provides for the valuation of hereditaments containing machinery and plant, and any order made by the Minister of Health thereunder shall apply for the purpose of the making or revision of valuation lists under the Valuation (Metropolis) Act, 1869, as they apply for the purpose of the making or revision of valuation lists under the principal Act.

Application
of s. 24 of
principal
Act to
London.
15 & 16
Geo. 5. c. 90.
32 & 33 Vict.
c. 67.

(2) If and so far as, regard being had to the extent, if any, to which in the making of any valuation list in

force at the commencement of this Act account was taken of any plant or machinery in or on any hereditament, the application of the said section and order affects the value of that hereditament as appearing in the valuation list, effect shall be given to such alteration in value in the supplemental list which is to come into operation on the sixth day of April, nineteen hundred and twenty-nine, or if the authority concerned think fit, in a provisional list made before the said date :

Provided that any such provisional list shall, for the purpose of giving effect to any such alteration, have operation from that date only (and not from any earlier date on which a copy of the list is served on the occupier of the hereditament), but for the purposes of paragraph (1) of section forty-six of the Act of 1869 alterations shown in any such provisional list shall be deemed to have taken place during the twelve months preceding the said sixth day of April.

Amendment
as to ascer-
tainment of
rateable
value.

2.—(1) The Valuation (Metropolis) Act, 1869, shall, for the purposes of the making of the valuation lists thereunder which will come into force on the sixth day of April, nineteen hundred and thirty-one, and for the purposes of the revision and alteration of those lists (but not for the purposes of the making of any subsequent new valuation lists), have effect as if for the provisions in the Third Schedule to that Act relating to the classes of hereditaments numbered 1, 2, 3, 4 and 5 in the said schedule there were substituted the provisions contained in Part I of the First Schedule to this Act :

Provided that, if in the case of any hereditament being or forming part of a house or building let out in separate tenements the rateable value which would be produced in accordance with this subsection exceeds the rateable value which would have been produced under the provisions of the said Act of 1869, the rateable value of the hereditament shall be determined in accordance with such last mentioned provisions.

(2) For the purpose of the making revision and alteration of the valuation lists aforesaid and of any subsequent valuation lists to be made under the Valuation (Metropolis) Act, 1869, where the amount of the rateable value as ascertained in accordance with the provisions of that Act as amended by any Act for the time being in force includes a fraction of a pound, the

amount of the rateable value shall be increased or reduced, as the case may be, to the nearest complete pound, or, if the fraction is ten shillings, the fraction shall be disregarded.

(3) The principal Act shall, for the purposes of the making of the first new valuation lists thereunder and of the revision and amendment of those lists (but not for the purposes of the making of any subsequent new valuation lists), have effect and be deemed always to have had effect as if for the provisions in Part I of the Second Schedule to that Act relating to the classes of hereditaments numbered 1 and 2 in the said Schedule there were substituted the provisions contained in Part II of the First Schedule to this Act.

(4) If the first new valuation list under the principal Act for any rating area has been finally approved before the passing of this Act, the rating authority shall forthwith make such amendments in the rateable values of hereditaments contained therein as are necessary to give effect to the provisions of the last preceding subsection, and such amendments in any rate already made as are necessary to make it conform with the valuation list as amended, and all such last-mentioned amendments shall have effect as if they had been contained in the rate as originally made.

3.—(1) Section eleven of the principal Act (which relates to the rating of and the collection of rates by owners) shall for the purposes of any rate made for a rating area in respect of a period during which the first new valuation list made under the said Act for that area is in force have effect and be deemed always to have had effect as if it provided that the allowance to be made to owners rated under subsection (1) thereof shall be at the rate of ten per cent. of the amount payable, or such greater percentage, not exceeding fifteen per cent., of that amount as the rating authority may by resolution of general application determine.

Amendment
of s. 11 of
principal
Act.

(2) Subsection (10) of the said section eleven so far as it enables rating authorities to continue in force provisions contained in any local Acts with respect to the rating of owners instead of occupiers shall be deemed to confer such powers and to have such effect as are mentioned in the Second Schedule to this Act.

Minor
amend-
ments of
principal
Act.

4.—(1) Where a rating authority, in accordance with the provisions of section five of the principal Act, upon a change taking place in the occupation of a hereditament, correct in any rate the name of the occupier of that hereditament without altering the rateable value thereof appearing in the rate, then, notwithstanding anything in section thirty-seven of the principal Act, it shall not be necessary for them to make a proposal for the purpose of any corresponding alteration to be made in the valuation list.

(2) Where the owner of a hereditament by means of an objection, proposal or notice of appeal to quarter sessions, seeks to obtain a reduction in the rateable value of that hereditament, then, notwithstanding anything in section thirty-seven or the Fourth or Fifth Schedule to the principal Act, it shall not be necessary for the assessment committee, rating authority or owner, as the case may be, to serve upon the occupier of the hereditament a copy of such objection, proposal or notice, or to give to him any notice of the date upon which such objection or proposal is to be considered, or of the committee's decision thereon or of the alteration (if any) made in the valuation list.

(3) Paragraph 3 of Part I of the Fourth Schedule to the principal Act shall have effect as if the following words were omitted therefrom, that is to say, the words "or where the gross or net annual or rateable value assigned in the draft list to some hereditament exceeds the value as stated in the valuation list for the time being in force, or where there is no such valuation list as stated in the then last assessment to the poor rate."

(4) In paragraph 6 of Part III of the Fourth Schedule to the principal Act for the words "who is a party to" there shall be substituted the words "who appeared before the committee on the consideration of."

Short title
and con-
struction.

5.—(1) This Act may be cited as the Rating and Valuation Act, 1928, and the principal Act and this Act may be cited together as the Rating and Valuation Acts, 1925 and 1928.

(2) This Act, except so far as it relates to London, shall be construed as one with the principal Act.

SCHEDULES.**FIRST SCHEDULE.**

Section 2.

PART I.

<u>Class of Hereditaments.</u>	<u>Maximum amount of Deduction.</u>
Class 1—Houses and buildings without land other than gardens where the gross value does not exceed £15.	An amount equal to two-fifths of the gross value.
Class 2—Houses and buildings without land other than gardens where the gross value exceeds £15 but does not exceed £20.	£6 together with an amount equal to three-tenths of the amount by which the gross value exceeds £15.
Class 3—Houses and buildings without land other than gardens where the gross value exceeds £20 but does not exceed £40.	£7 together with an amount equal to one-quarter of the amount by which the gross value exceeds £20.
Class 4—Houses and buildings without land other than gardens where the gross value exceeds £40 but does not exceed £100.	£12 together with an amount equal to one-fifth of the amount by which the gross value exceeds £40.
Class 5—Houses and buildings without land other than gardens where the gross value exceeds £100.	£24, or £20 together with an amount equal to one-sixth of the amount by which the gross value exceeds £100, whichever is the greater.

PART II.

<u>Class of Hereditaments.</u>	<u>Amount of Deduction.</u>
1. Houses and buildings without land other than gardens where the gross value does not exceed £15.	An amount equal to 40 per cent. of the gross value.
2. Houses and buildings without land other than gardens where the gross value exceeds £15 but does not exceed £20.	£6 together with an amount equal to 30 per cent. of the amount by which the gross value exceeds £15.

SECOND SCHEDULE.

Section 3. **POWERS OF RATING AUTHORITIES TO CONTINUE IN FORCE
PROVISIONS CONTAINED IN LOCAL ACTS WITH
RESPECT TO THE RATING OF OWNERS INSTEAD
OF OCCUPIERS.**

(1) If on the first day of January, nineteen hundred and twenty-eight, in any rating area the provisions which regulated the allowances to be made in the case of a rate as hereinafter defined to owners of hereditaments who are rated instead of the occupiers thereof, or who have agreed to pay the rates due in respect thereof (in this Schedule referred to as the "existing provisions") were, either wholly or as to any part thereof, contained in a local Act, then, if the rating authority before the date of the first new valuation, or before the expiration of two months from the passing of this Act, whichever is the later, so resolve, the existing provisions shall, unless and until the resolution is rescinded, apply to any rate made for the rating area in respect of any period commencing on or after the date of the first new valuation, and if and so far as they may have been repealed by, or by any order made under, the principal Act shall have effect as if re-enacted herein.

(2) In any such case as aforesaid—

- (a) all resolutions, agreements and notices in force under the existing provisions shall continue to have effect unless and until they are rescinded or modified; and
- (b) the rating authority, if they are the owners of any hereditaments to which the existing provisions apply, and as such are rated in respect thereof instead of the occupiers, shall, in the case of any hereditament which is of a value not exceeding that specified in the existing provisions and which is occupied by the owner, make to the owner (subject to the amount of the rate chargeable in respect of that hereditament being paid by him before such date as the rating authority may fix) an allowance corresponding to the amount, if any, passed on by the authority to the occupiers of hereditaments owned by them in respect of the allowance to which the authority are entitled by reason of their being so rated as owners, and unless the contrary is proved, an amount not less than 5 per cent. of the amount payable in respect of rates shall be deemed to have been so passed on by the authority.

(3) For the purposes of this Schedule, the expression "rate" means a consolidated rate which includes a poor rate, a poor rate or a borough rate :

2ND SCH.
—cont.

Provided that, in a rating area in which both a poor rate and a borough rate were levied, provisions applicable to the borough rate shall not be deemed to be existing provisions if, or in so far as, inconsistent with the provisions applicable to the poor rate.

CHAPTER 9.

An Act to extend further the duration of the Local Authorities (Emergency Provisions) Act, 1923, and to amend temporarily the provisions as to the Metropolitan Common Poor Fund.

[10th May 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The provisions of the Local Authorities (Emergency Provisions) Act, 1923, mentioned in the Schedule to this Act shall, as amended by the Local Authorities (Emergency Provisions) Act, 1924, and by the Local Authorities (Emergency Provisions) Act, 1926, and by this Act, have effect as if for references therein to nineteen hundred and twenty-eight there were substituted references to nineteen hundred and thirty-two.

Further extension of duration of 13 & 14 Geo. 5. c. 6. 14 & 15 Geo. 5. c. 29. 16 & 17 Geo. 5. c. 10.

2.—(1) The board of guardians of every poor law union in London shall, not later—

Provisions as to metropolitan common poor fund.

(a) in the case of the half year commencing on the first day of April, nineteen hundred and twenty-eight, than twenty-one days after the passing of this Act ;

(b) in the case of any subsequent half year, than four weeks before the commencement of the half year ;

submit to the Metropolitan Asylums Board estimates in such form as the Minister of Health may prescribe of